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Calif. could ban some food dyes in schools - Law would take affect in 2027

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California public schools could soon be banned from serving certain artificial dyes in food over concerns about developmental harm in children.

Dubbed a "first-in-the-nation" measure, state lawmakers passed Assembly Bill 2316 in late August to prohibit six additives that are permitted by federal regulators to make food more colorful.

The bill, known as the California School Food Safety Act, would ban commercial dyes Blue 1, Blue 2, Green 3, Red 40, Yellow 5 and Yellow 6 in public schools in the nation's most populous state. It is now on Gov. Gavin Newsom's desk.

According to the bill, state research suggests such synthetic dyes can result in hyperactivity and other behavioral problems. Previous, similar research prompted the European Union to restrict food coloring. Nearly all the products that the California bill would ban in schools require warning labels in EU products.

"California has a responsibility to protect our students from chemicals that harm children and interfere with their ability to learn," state Assembly member Jesse Gabriel, a Democrat who authored the bill, said in a statement.

Newsom's office does not comment on pending legislation, a spokesperson said Saturday. The deadline for Newsom to sign or veto legislation is Sept.30, the spokesperson said.

The nonprofit Environmental Working Group and the California Medical Association, which represents doctors, supported the bill.

The Food and Drug Administration approvals for the dyes banned under AB 2316 date back decades, the environmental nonprofit said. Those approvals were based on old studies not designed to detect behavioral effects in children, the medical association has said in its support of AB 2316.

The Consumer Brands Association, a representative of the dye industry, opposed the bill because it overrode existing food safety rules, and the group disputed findings about adverse health effects. John Hewlitt, the association's senior vice president of packaging, sustainability and state affairs, said the bill was "advancing a political agenda."

"The passage of this bill could cost schools and families money, limit choice and access, and create consumer confusion," he said in a statement provided to USA TODAY. "The approach taken by California politicians flies in the face of our science and risk-based process and is not the precedent we should be setting when it comes to feeding our families."

A 2021 state Environmental Protection Agency assessment found American youth diagnosed with ADHD increased in the last 20 years, which prompted the state to look at food dyes. The Centers for Disease Control and Prevention has similarly tracked increases in ADHD diagnoses in children in recent years.

Focusing on seven food dyes, including those that would be banned under AB 2316, California researchers reviewed prior studies in humans and laboratory animals. Findings indicated the dyes were linked to adverse neurobehavioral outcomes in children, who varied in sensitivity.

If signed into law, California's ban would take effect in 2027.

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